

Defendant SRGA Resort (SRGA) moves, pursuant to California Code of Civil Procedure section 585, subdivision (b), for an order lifting the stay and granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's file.

Based on the foregoing, the Motion is GRANTED.

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Tifnique Garrison v. Store Storage

26CV000996

[1] MOTION TO CONTINUE PENDING RETENTION OF LEGAL COUNSEL

TENTATIVE RULING: The motion appears MOOT.

By way of the instant Motion, Plaintiff requests time to hire counsel and requests that the August 19, 2026 hearing on Plaintiff's Application for Writ of Possession be moved to October 8, 2026. The instant Motion was filed August 18 after the Tentative Ruling for the August 19 hearing was already posted. Nevertheless, the August 19 hearing has passed, rendering the present Motion moot. Moreover, the August 19 Minute Order continued the Application for Writ hearing anyway, albeit for Plaintiff's failure to file a Proof of Service.

To the extent the present Motion is not moot, there is no Proof of Service of the Motion on Defendant. As a result, the Court is unable to ascertain whether Defendant received sufficient notice and the hearing would need to be continued. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

[2] PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION AND TEMPORARY RESTRAINING ORDER

TENTATIVE RULING: The matter is CONTINUED one final time to October 23, 2026, at 8:30 a.m. in Dept. A to allow Plaintiff additional time to provide sufficient notice of the hearing and application and to file Proof of Service (POS).

By Minute Order dated August 19, 2026, the matter was continued for lack of a POS, and Plaintiff was directed to (1) prepare an Amended Notice of Hearing which contains the continued

hearing date, (2) provide timely service of both the Amended Notice and July 14, 2026 Application on all other parties pursuant to Code Civ. Proc., § 1005, subd. (b), and (3) file a POS prior to the continued hearing pursuant to Rules of Court, rule 3.1300, subd. (c).

There is no Amended Notice or POS in the Court file. That said, the Court notes the representations made through Plaintiff's Motion to Continue Pending Retention of Legal Counsel, filed August 18, 2026, regarding Plaintiff's wish for additional time to retain counsel. Thus, the Court finds an additional continuance for that reason appropriate.

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Nai Saechao v. Wal-Mart Associates, Inc

26CV001131

[1] DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED.

A. PROCEDURAL MATTERS

By Minute Order dated August 25, 2026, the Court continued the matter and directed the moving party to provide an amended notice with notice of the Court's tentative ruling system as required by Local Rule 2.9. The moving party filed an amended notice; however, the Court notes that the tentative ruling notice contained therein is not the current version required under Local Rule 2.9, effective 1/1/26. Counsel is directed to review the Local Rules and provide the correct notice going forward.

Defendants Wal-Mart Associates, Inc. ("Wal-Mart") and Parker Capps ("Capps") (collectively "Defendants") demur, pursuant to Code of Civil Procedure section 430.10,³ subdivision (e), to the Second, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth, Fourteenth Causes of Action asserted in the Complaint filed by Plaintiff Nai Saechao ("Plaintiff").

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action," "[t]he pleading is uncertain," or "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (§ 430.10, subds. (e)-(g).)

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.